

TENATIVE:

IN THE MATTER OF: THE BISHOP FAMILY REVOCABLE TRUST.

Case No. 16PR178573

INTRODUCTION

Petitioners Juliana L. Bishop and Laurie B. Holderman (“Petitioners”) filed a petition for redress of (1) financial elder abuse, (2) relief under Probate Code section 850, (3) breach of contract, (4) unjust enrichment, and (5) conversion. On August 18, 2025, they filed an amended petition alleging only (1) financial elder abuse, (2) relief under Probate Code section 850, (3) breach of contract. Petitioners allege that Respondents Vander Landscape and Reetpaul Singh Vander (“Vander”, collectively “Respondents”) contracted with octogenarian David Bishop (“Bishop”) to perform landscaping on several acre property in Gilroy at a price of \$150,000. But, Respondents kept increasing the price and scope of work until the project costs exceeded \$1.5 million.

Currently before the court are Petitioners’ motions to compel further responses to their form interrogatories, set one, requests for production of documents, set one, and requests for admissions, set one. All three motions are opposed and Petitioners have filed an omnibus reply.

DISCUSSION

Petitioners move to compel further responses to their (1) requests for production, set one, numbers 6, 7, 10-13, 15-16, 19, 21, 23-24, and 25; (2) requests for admission, set one, numbers 20, 22, 26, 27, 31, and 35; and (3) requests for admission, numbers 15.1 and 17.1 served on Vander. They also seek production of non privileged documents responsive to requests for production, set one, numbers 6, 7, 10, 21, and 23. In opposition, Vander contends that he has served amended responses and produced additional documents. Thus, he maintains that the motions are moot. Petitioners do not contend that the amended responses are insufficient and, in fact, agree that the motions are moot. Accordingly, the motions are MOOT to the extent they request further responses and further production of documents.

Petitioners request sanctions in the amount of \$4,999 for all three motions. The court may award sanctions even if the motions have been rendered moot by the subsequent production of amended responses. (Code Civ. Proc. §§ 2031.310, subd. (h), 2033.290, subd. (d), 2030.300,

subd. (d); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408-409.) Petitioners' counsel declares that he spent "far more than" five hours preparing the instant motions at a rate of \$1,130 per hour. While five hours spent on all three motions is a reasonable amount of time to spend on the motions, the court finds counsel's hourly rate unreasonable. Accordingly, the court will award Petitioners \$3250 (five hours at \$650 per hour). The court finds that the filing of the motions was necessary in light of Vander's failure to timely serve amended responses despite agreeing to do so. Vander is ordered to pay to Petitioners' counsel \$3250 within 30 days of the date of the court's final order on this matter.

CONCLUSION

The motions are MOOT to the extent they request further responses and further production of documents. Petitioners' request for sanctions is GRANTED in the amount of \$4,000. Vander is ordered to pay to Petitioners' counsel \$3250 within 30 days of the date of the court's final order on this matter.

IT IS SO ORDERED.

Dated: May _____, 2026

HON. PANTEHA E. SABAN
JUDGE OF THE SUPERIOR COURT